

Sanjay Singh vs . State And Ors. on 12 December, 2022

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CA. No. 114/2021 FIR No. 151/2013
Sanjay Singh Vs. State and Ors.

IN THE COURT OF SH. DEVENDER KUMAR JANGALA
ASJ-05, PATIALA HOUSE COURT, NEW DELHI DISTRICT,
NEW DELHI

CA No. 114/2021
FIR No. 151/2013
PS R.K. Puram
Sanjay Singh Vs. State and Ors.

Sanjay Singh
S/o Sh. Dinesh Singh
R/o Village-Beri Chahar
Distt. Agra, U.P.

..... Appellant

Versus

1. The State (Govt. Of NCT)

..... Respondents

Date of filing of Appeal : 24.12.2021
Date of arguments : 26.11.2022
Date of Judgment : 12.12.2022

Appearances: Sh. Sunil Kumar, Ld.counsel for the appellant.
Sh.Ashok Kumar, Ld. Additional Public
Prosecutor for the State.

JUDGMENT:

1. This is an appeal under Section 374 Criminal Procedure Code(hereinafter referred to as Cr.PC) against the conviction judgment dated 28.01.2020 passed by Ms. Prabh Deep Kaur, Ld. MM, New Delhi District and order on sentence dated 30.11.2021, passed by Ms. Shivangi Vyas, Ld. MM, Patiala House Court, Delhi in case FIR No. 151/13, under Section 354D IPC, PS R. K. Puram.

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2. Brief Facts: The present FIR No. 151/2013 was registered on 10.05.2013 on the statement of the victim/complainant for commission of the offence punishable under Section 354D of the Indian Penal Code(hereinafter referred as IPC). The complainant has alleged that on 10.05.2013 at about 10.50 AM at Khokha Market, Mohammadpur, Near Primary School, New Delhi, the accused Sanjay Singh followed her to foster personal interaction repeatedly despite the clear indication of disinterest by the complainant. Thus the accused is alleged to have committed the offence

punishable under Section 354D IPC.

3. The police conducted the investigation and after completion of investigation charge sheet U/s 354D IPC was filed. After completion of necessary formalities the charge for the commission of offence punishable under Section 354D IPC was framed upon the accused on 10.07.2014 to which he pleaded not guilty.

4. The Ld. trial court conducted the trial and after completion of trial, accused Sanjay Singh was convicted for commission of offence punishable under Section 354 D IPC vide judgment dated 28.01.2020. The appellant/accused was sentenced to go simple imprisonment for a period of 06 months and to pay a fine of Rs. 10,000/- for commission of offence U/s 354D of the IPC, vide order on sentence dated 30.11.2021.

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5. The appellant/convict being aggrieved by the judgment of the conviction dated 28.01.2020 and order of sentence dated 30.11.2021 has filed present appeal.

6. In the appeal it is stated that the prosecution has fails to prove its case beyond reasonable doubt. That the necessary ingredients for commission of offence punishable under Section 354D IPC are not satisfied in the present case. That the complainant either in the police complaint or in the statement U/s 161 and 164 Cr.P.C has not alleged that the accused was fostering personal interaction. That the appellant never alleged to be approaching or contacting the complainant.

7. That the Ld. Trial Court has passed the judgment with pre judged mind and in a prejudicial manner. That the Ld. Trial Court has ignored the glaring and vital contradictions and considered the same as minor and natural variations. That the complainant in her statement under Section 164 Cr. PC has levelled additional allegation with regard to employer of the accused and in her examination in chief she has alleged that said person namely Shekhar told her to give evidence against her husband also, therefore, it is clear that the complainant has levelled the baseless and false allegations and she is not reliable witness. That in her examination in chief on 13.10.2014 she has repeated her added allegations of hiring of the accused by her husband whereas in the statement under Section 164 Cr. PC it was nowhere mentioned.

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8. That it is an admitted case of the prosecution that that the appellant was standing at about 30-40 mtrs away from the car of the complainant. Therefore how it can be said the a person standing 30-40 meters away, on a running road was stalking the complainant. That the complainant was not sure whether the appellant was same person who was standing in front of her flat, but deposed falsely under confused perception. It is stated that in view of grounds of appeal, the impugned judgment of conviction and order on the point of sentence may kindly be set aside.

9. The notice of the appeal was issued to the state. The present appeal is strongly opposed by Ld. Addl. PP for the State. It is submitted that there is no illegality or infirmity in the orders passed by Ld. Trial Court. Court notice was also issued to the complainant and her version was also heard on the appeal.

10. I have carefully perused the record and gone through the submissions made by Sh. Ashok Kumar, Ld. Additional PP for the State and Sh. Sunil Kumar, Ld. Counsel for the appellant.

11. The offence of stalking is made punishable under Section 354D of the IPC. Section 354D was inserted vide amendment in the IPC w.e.f. 03.02.2013. Section 354D provides the punishment for stalking. Section 354D is reproduced for guidance, which reads as under:

(1) Any man who--

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(I) follows a woman and contacts, or attempts to contact such woman to foster personal interaction repeatedly despite a clear indication of disinterest by such woman; or

(ii) Monitors the use by a woman of the internet, email or any other form of electronic communication, commits the offence of stalking. Provided that such conduct shall not amount to stalking if the man who pursued it proves that--

(I) it was pursued for the purpose of preventing or detecting crime and the man accused of stalking had been entrusted with the responsibility of prevention and detection of crime by the State; or

(ii) it was pursued under any law or to comply with any condition or requirement imposed by any person under any law; or

(iii) in the particular circumstances such conduct was reasonable and justified.

(2) Whoever commits the offence of stalking shall be punished on first conviction with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and be punished on a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

12. The perusal of Section 354D IPC would show that following ingredients must be satisfied to convict an accused for commission of said offence:

- (i) The man should follow a woman.
- (ii) he should show intention to build personal interaction.
- (iii) Purpose should be personal interaction repeatedly.
- (iv) There should be clear indication of disinterest by that woman.

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13. Before proceeding further, the evidence of the

complainant is required to be perused. The complainant has been examined in the present case as PW-1. The complainant in her deposition as PW-1 has narrated the first incident which is reproduced as under:-

"On 10.05.2013 at about 8:30 am, when I left my son to his school bus, I noticed that somebody was waiting outside my house sitting on his bike. I asked the said persons why he was waiting there, he said that he was waiting for somebody. I noticed him on previous day also i.e. on 09.05.2013."

The complainant in her deposition has also deposed regarding second incident taken place on 10.05.2013 which is reproduced as under:-

"On 10.05.2013 at around 10.15 a.m I came out from house and was going to meet my lawyer at Mohammad Pur, R. K. Puram, since I have a matrimonial dispute with my husband. I noticed as my car passed by his bike, he started following me from there and followed me till Mohammad Pur because this place is congested, so I pretended to stop there and to buy something. I noticed him he also stopped there about 30-40 meters away and started writing something and clicked something from his mobile phone. Without giving him any chance to escape, I came out from my car and caught hold of him and snatched his mobile phone. Thereafter I called police at 100 number. Police reached there and apprehended the accused."

14. A bare perusal of the deposition of the complainant would reveal that the complainant has nowhere deposed that the accused has shown any intention to build personal interaction. The complainant has also not deposed that the purpose of the accused was CA. No. 114/2021 FIR No. 151/2013 Sanjay Singh Vs. State and Ors.

to build personal interaction. The complainant has also fails to depose that the accused has repeated such conduct despite her clear indication of disinterest. To constitute the offence u/s 354D IPC, the prosecution must prove that the accused has followed the complainant with the intention to build the personal interaction repeatedly.

15. In the present case, there is neither any allegation of the complainant nor any evidence that the accused was having any intention to build personal interaction. The accused has never attempted to build personal interaction with the complainant rather, the complainant herself went to the accused to make inquiry and even in that situation, the accused did not attempt to build any personal interaction.

16. The analysis of testimony of the complainant would reveal that two necessary incidents to constitute the offence u/s 354(D) IPC i.e. he should show intention to build personal interaction and purpose should be personal interaction repeatedly are missing. In the absence of fulfillment of these

two necessary ingredients, the prosecution would not be able to establish the commission of offence u/s 354D of Indian Penal Code.

17. The Ld. Trial Court has ignored the basic definition of Section 354D IPC while passing the impugned Judgment and has wrongly convicted him for commission of the alleged offence u/s CA. No. 114/2021 FIR No. 151/2013 Sanjay Singh Vs. State and Ors.

354D IPC. Therefore, the impugned Judgment dated 28.01.2020 and order on sentence dated 30.11.2021 passed by Ld. Trial Court are liable to be set aside as the same are against the provision of law. Accordingly, impugned Judgment dated 28.01.2020 and order on sentence dated 30.11.2021 are set aside.

18. The accused stands acquitted of offence punishable u/s 354D IPC. In terms of Section 437A Cr.PC, accused Sanjay Singh is directed to furnish a personal bond in the sum of Rs.25,000/- with one surety in the like amount with condition that he shall appear before higher court/any court as and when receive summons/notice and shall not change their address without the prior intimation to the court. The bond shall be valid for a period of six months from the date of its acceptance.

19. Appeal is allowed accordingly.

20. Trial Court Record along with copy of the order be sent to the Ld. Trial Court.

21. Appeal file be consigned to Record Room.

(Devender Kumar Jangala) ASJ-05, NDD/PHC/New Delhi 12.12.2022